

Court No. - 32

Case :- WRIT - C No. - 39243 of 2018

Petitioner :- M/S Vipin Kalanamak Factory Private Ltd

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bablu Singh

Counsel for Respondent :- C.S.C., Chandan Agarwal, Ramendra Pratap Singh

Hon'ble Shashi Kant Gupta, J.

Hon'ble Mrs. Manju Rani Chauhan, J.

Heard Sri Alok Singh, learned counsel holding brief of Sri Bablu Singh, learned counsel for the petitioner, learned Standing Counsel for the State and Sri Chandan Agarwal, learned counsel for the respondent no.3.

By means of the present petition, the petitioner has sought for the following reliefs:-

"i) issue a writ, order or direction in the nature of certiorari to quash the impugned notice dated 08.08.2018 issued by the Executive Engineer, Electricity Distribution Division, Modinagar, a copy whereof is contained as Annexure-1 to writ petition and the recovery proceedings sought to be initiated against the petitioner-company pursuant to the impugned citation to appear dated 31.10.2018 issued by the Tehsildar, Modinagar, District Ghaziabad, a copy whereof is contained as Annexure-1A to writ petition.

ii) issue a writ, order or direction in the nature of mandamus commanding the respondents not to make any recovery and not to take any coercive measures against the petitioner-firm in pursuant of the impugned citation to appear issued by the Tehsildar, Modinagar, District Ghaziabad."

At the very outset, Sri Chandan Agarwal, learned counsel for the respondent no.3 has submitted that the petitioner has a remedy under clause 7.10 of the U.P. Electricity Supply Code, 2005 before the Consumer Redressal Forum, which also has the power to grant interim order.

In view of above, in case, the petitioner avails the aforesaid remedy before the Consumer Redressal Forum within 15 days from today, the same shall be considered and decided by a reasoned and speaking order within a period of three months from the date of production of a certified copy of the order before it.

With the aforesaid directions, this writ petition is finally disposed of.

Order Date :- 30.11.2018

S.Ali